



United States
Attorney's Office
Western District of Virginia



Martinsville Doctor Sentenced to 40 Years for Drug Distribution

Tuesday, September 2, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Virginia

Dr. Joel Smithers was Convicted of 467 Counts Following a Jury Trial in December 2024

ABINGDON, Va. – A Martinsville-based doctor, who was found guilty of more than 450 counts of multiple drug charges at the conclusion of a three-week jury trial in December 2024, was sentenced today in U.S. District Court in Abingdon to 40 years in federal prison.

Joel Smithers, 42, of Texarkana, Texas, was found guilty of one count of maintaining a place for the purpose of illegally distributing controlled substances and 466 counts of illegally prescribing Schedule II controlled substances.

"This defendant's actions betrayed his oath to his patients, his community, and the healthcare system at large," Acting United States Attorney Robert N. Tracci said today. "Today's sentence reflects the seriousness of these crimes, and the destruction wrought by the opioid epidemic in our communities, an epidemic fueled by the flagrant misconduct of Dr. Smithers. When doctors betray the trust placed in them, they must be held accountable."

"Dr. Smithers failed his patients and the community he swore to serve. Healthcare providers play a vital role in dispensing medications that address their patients' health requirements. By overprescribing and irresponsibly diverting dangerous controlled substances he put the citizens lives at risk. Not only did we conduct a criminal investigation into Dr. Smithers, but the DEA also revoked his DEA Registration. This action, and today's sentence prevents him from prescribing medications, ensuring the safety of the public from his negligent practices," said Christopher C. Goumenis, Special Agent in Charge, DEA Washington Division.

"Dr. Smithers operated like a drug dealer with a prescription pad, flooding communities with addictive and deadly opioids, all while pocketing hundreds of thousands of dollars," said Attorney General Jason

Miyares. "I'm proud of the work done by my Major Crimes and Emerging Threats prosecutor M. Suzanne Kerney-Quillen, in partnership with our Medicaid Fraud Control Unit and federal and local law enforcement, to hold him accountable."

Smithers opened an office in Martinsville in August 2015 and prescribed controlled substances to every patient in his practice, resulting in over 500,000 Schedule II controlled substances being distributed. The drugs involved included oxymorphone, oxycodone, hydromorphone, and fentanyl. A majority of those receiving prescriptions from Smithers traveled hundreds of miles, one-way, to receive the drugs. Smithers did not accept insurance and took in over \$700,000 in cash and credit card payments prior to a search warrant being executed at his office on March 7, 2017. Effective April 17, 2019, the DEA Acting Administrator revoked Dr. Smithers' DEA Registration Number.

Smithers was previously convicted in 2019 of these charges. However, after his conviction, the United States Supreme Court changed the law concerning jury instructions in cases involving illegal distribution of controlled substances by health care providers. Accordingly, a new trial was ordered and occurred in December 2024.

At sentencing, the Court determined that Smithers obstructed justice by perjuring himself when he testified at trial. The Court further found that Smithers was a leader of this extensive criminal activity extending from August 2015 to August 2017. Finally, the Court determined that Smithers abused a position of public trust and misused a special skill when he unlawfully distributed numerous Schedule II controlled substances.

The case was investigated by the Drug Enforcement Administration's Tactical Diversion Squad (Roanoke and Bristol offices) and the Health and Human Services – Office of Inspector General. DEA Task Force Officers with the police departments of Bristol, Martinsville, Buena Vista, Roanoke, and Roanoke County; the Sheriff's Offices of Henry County and Pittsylvania County; the Virginia State Police; and the Medicaid Fraud Control Unit of the Virginia Office of the Attorney General assisted in the investigation.

Assistant United States Attorneys Randy Ramseyer and Corey Hall and Special Assistant United States Attorney M. Suzanne Kerney-Quillen, a Senior Assistant Attorney General with the Virginia Attorney General's Major Crimes and Emerging Threats Section, prosecuted the case in this most-recent trial for the United States.

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